

PROMISING RETURN PRACTICES

PRE-RETURN SWEDEN - I

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Name of practice	Prioritising supervision (uppsikt) over detention in return procedures	
Dates	(No Information)	
Target group	Future-return migrants / migrants with return decisions	
Geographic Scope	Country	Sweden
	Regions	Europe
	Sub Region	North Europe, Scandinavia
Actor	Swedish Migration Agency Migration Courts and the Migration Court of Appeal Police Authority	
Return Stages	Pre-Return	
Challenge addressed	Identification, Detention, and Case Management	
Principles referred (implicit or explicit)	Human-rights–based approach	

SUMMARY

Swedishlaw embeds a “supervision first” model: under the Aliens Act, authorities must consider supervision (*uppsikt* in Swedish) before resorting to detention, and deprivation of liberty is only lawful when less intrusive measures are insufficient. Uppsikt allows people with return decisions to remain in the community under conditions such as periodic reporting to the Police or the Swedish Migration Agency and, in some cases, surrendering travel documents, thereby maintaining contact and compliance without confinement. In principle, this model aligns with the EU Return Directive’s requirement to prioritise alternatives to detention and, when implemented, offers a less intrusive and generally lowercost option for both migrants and authorities.

BENEFITS/IMPACTS AND SHORTCOMINGS

On paper, the “supervision first” framework is a good practice, because it requires explicit consideration of noncustodial measures before detention is imposed as well as it enables case management that can support compliance while protecting family life and mental health and reducing costs relative to detention.

In practice, however, detention is used more often than the legal model would suggest, and supervision remains underutilised. For example, in 2024 the number of detainees held under the Aliens Act increased from 3,084 in 2023 to 3,695 in 2024 (Swedish Migration Agency, Annual Report 2024, Ref. no. 1.3.2-2025-1844). By contrast, in 2024 the Migration Agency issued only 217 supervision (*uppsikt*) decisions, up from 155 in 2023 (AIDA, Sweden Country Report – Update 2024). Thus, in 2024 supervision decisions represented roughly 5.55% of all return decisions, clearly indicating that supervision is underutilised.

Oversight bodies and NGOs, including the Parliamentary Ombudsman and the National Audit Office, have criticised it on three grounds: 1) weak or missing reasoning as to why supervision is not used instead of detention; 2)insufficient, qualitative proportionality assessments, and 3) lack of clear guidance on when and how uppsikt should be preferred.

In a newly published report the Swedish National Audit Office (December 2025, Detention in the migration process – *A costly measure without clear governance* - RiR 2025:32) has examined whether the Swedish Migration Agency's and the Swedish Police Authority's work with detention facilities is effective, and concluded that detention operations are not effective. "Processes at the Swedish Migration Agency and the Swedish Police Authority do not ensure effective decisions on who is to be detained, cooperation between the agencies is deficient and the Swedish Migration Agency does not ensure legally certain and cost-effective operation of the detention centres".

KEY LESSONS

Monitoring and enforcement prevent detention as default. Legal safeguards such as proportionality clauses and formal alternatives (*uppsikt*) must be backed by monitoring and enforcement; otherwise, detention risks becoming the default.

Transparency in statistics ensures the supervision first practice. Transparent statistics on how many people are detained versus placed under supervision are essential to assess whether the "supervision first" principle is applied in practice.

Non-custodial options must be the rule. Clear, case by case reasoning is needed to justify any departure from the non-custodial option.

RECOMMENDATIONS

Mandate rigorous, case-by-case justification for all detention decisions. Operationalise proportionality in detention decisions through strict, individualised reasoning in every detention decision, explicitly documenting why *uppsikt* or other alternatives are not sufficient, and ensure rapid, effective judicial review and effective judicial oversight.

Scale up and diversify alternatives to detention beyond basic reporting obligations. Case-management models, community-based hosting, and financial or other guarantees should be developed to avoid overreliance on a binary choice between detention and a single alternative.

Strengthen independent monitoring and transparency. Publish regular public reporting on detention conditions, use of alternatives such as supervision, and return outcomes, and empower independent monitoring bodies to review proportionality and the use of alternatives systematically.

REFERENCES

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